▼ VIEWPOINT

REINING IN THE BCCI AT LAST

A new national sports law promises to make the apex cricket body subject to government scrutiny



BY VIDUSHPAT SINGHANIA

The Union government's initiative to introduce the National Sports Governance Bill, 2025, in the Lok Sabha is a significant stride in reforming the functioning of National Sports Federations (NSFs). While the Bill is intended to apply uniformly across all recognised NSFs, its implications are particularly pronounced in the context of the Board of Control for Cricket in India (BCCI), which has historically repelled governmental oversight due to cricket's popularity and financial dominance. The BCCI has maintained that since it does not take any financial grant from the government, it is not subject to policies applicable to other sporting federations. This stand has met with challenges, notably in the landmark *BCCI vs the Cricket Association of Bihar* 2016 judgment, where the Supreme Court held that the BCCI functions due to a tacit recognition by the Government of India, and the government has the power to regulate its activities through legislation. That legislation is finally near.

The Bill provides for the establishment of a National Sports Board (NSB), a statutory body intended to steer sports governance and oversee NSFs, issue guidelines for ethics codes and frame sexual harassment policies. Such provisions are particularly notable with regards to the BCCI. As a statutory body, the NSB is duty-bound to act upon complaints it receives, which cannot be left unaddressed or in abeyance, a frequent occurrence in the case of BCCI and its affiliated units. Further, the Bill provides a statutory right of appeal against any action taken by the NSB—including suspension or cancellation of recognition—with such cases to be heard by the National Sports Tribunal, bringing governance issues squarely within judicial oversight.

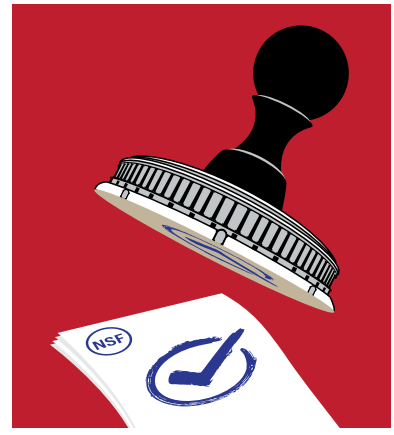


Illustration by RAJ VERMA

A NATIONAL SPORTS BOARD WILL COME UP TO OVERSEE FEDERATIONS, ETHICS CODES AND HARASSMENT POLICIES, AS WELL AS ELECTIONS

The Bill also impacts the administrative structure of the NSFs and lays down specific requirements regarding the composition of their executive committees and mandates a cap of 15 members. The committees must include at least two sportspersons of outstanding merit, two representatives from the Athletes' Commission and a minimum of four women members, thereby ensuring athlete/ player and women's representation, and broader stakeholder inclusion in decision-making. This would mark a change from the BCCI's current structure. With the Bill, representatives of cricketers' association and outstanding Indian cricketers will also have voting powers in the executive body of the BCCI.

A key reform introduced by the Bill relates to the conduct of elections within NSFs. The Bill proposes the establishment of a National Sports Election Panel. This is significantly different from the current framework, particularly in relation to the BCCI, whose elections are overseen by an Electoral Officer appointed by its Apex Council and under internal rules framed by its General Body.

Crucially, the Bill removes ambiguity on the applicability of the Right to Information (RTI) Act, 2005, to recognised sports bodies. The Bill explicitly states that all recognised sports organisations will be deemed public authorities under the RTI Act in relation to their functions, duties and powers. Unlike earlier legislations, this provision leaves no scope for exclusion, bringing even bodies like the BCCI within the fold of statutory transparency.

A word of caution though: the Bill empowers the Union government to grant exemptions or relax specific provisions of the Bill, including eligibility criteria for executive committee members. While the Bill marks a pivotal moment in India's approach to sports governance, its true impact on the future of Indian sport and particularly the BCCI will be shaped by how these reforms are implemented in practice. ■

The author is a lawyer specialising in sports, gaming and entertainment